Research Data Backup and Disaster Recovery Service Level Agreement

Schedule 3 to the services agreement between Ardwick University and Nimbus Archive Ltd — Version 1.0

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Provider	Nimbus Archive Ltd (the “Provider”)
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Amendments	Amendment No. 1 dated 18 September 2026, effective 1 November 2026

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0.9	2 May 2026	Draft for negotiation	Withdrawn
1.0	1 August 2026	Initial issue	In force

Table 0.1 — Version history.

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1. Purpose, Scope and Precedence

1.1 Purpose

This Schedule sets out the service levels against which the Provider's performance of the research data backup, archive and disaster recovery services is measured, the remedies available to the University where those levels are not met, and the governance by which performance is reported. It applies only to the Datasets listed in Appendix A.

1.2 Out of scope

The following attract no service level commitment and no service credit: (a) datasets not listed in Appendix A; (b) the University's own source storage, compute and identity systems; (c) data held by individual researchers on local devices or personal cloud accounts; and (d) any dataset the University has designated in writing as unmanaged.

1.3 Order of precedence

Where documents conflict, the following order applies, with the higher-ranked prevailing:

- (i) any Amendment to this Schedule;
- (ii) this Schedule and its Appendices;
- (iii) the Data Processing Agreement;
- (iv) the main services agreement; and
- (v) the Provider's service description.

Where this Schedule and the Data Processing Agreement each set a period for notifying the University of a security incident, the **shorter** period applies. This rule concerns security notification only and does not displace the ordering above for any other obligation.

> Note 1.3(a): An Amendment takes effect only on the date stated in it, and prevails over the unamended text of this Schedule from that date.

2. Definitions

Term	Definition
Backup Job	A scheduled or on-demand operation that captures a Recovery Point for a Dataset.
Backup Success Rate	For a Dataset and Service Month, the number of Backup Jobs producing a Verified Recovery Point divided by the number scheduled, expressed as a percentage.
Business Day	A day other than a Saturday, Sunday or public holiday in England and Wales, and excluding the University's published closure days.
Catalogue	The searchable index of Recovery Points maintained by the Provider, through which the University locates data for restore.
Dataset	A discrete research or teaching data collection listed in Appendix A and assigned a Protection Level and a Data Category.
Data Category	The classification applied to a Dataset under clause 7, being Restricted, Funded, Teaching or Transient.
Integrity Check	An automated checksum validation of a sampled Recovery Point, performed at the cadence in Table 3.1, which does not involve a full restore.
Monthly Dataset Fee	The recurring charge for a Dataset set out in Appendix A, excluding egress charges above the allowance in clause 6.4 and excluding VAT.
Protection Level	Vital, Important or Routine, as assigned to a Dataset in Appendix A.
Recovery Point	A point-in-time copy of a Dataset produced by a Backup Job.
Recovery Point Objective (RPO)	The maximum tolerable period of data loss for a Dataset, measured as the interval between the most recent Verified Recovery Point and the moment of failure.
Recovery Time Objective (RTO)	The maximum tolerable period between the University submitting a valid restore request and the Dataset being restored and confirmed available by the Provider.
Restore Test	A full restore of a sampled Recovery Point into an isolated environment, followed by a functional check by the University, performed at the cadence in Table 3.1.
Service Month	A calendar month during which the services are provided. A part-month at commencement or cessation is a Service Month and percentages are calculated over that part-month.
Verified Recovery Point	A Recovery Point that has passed checksum validation and been recorded as valid in the Catalogue.

Table 2.1 — Defined terms.

In this Schedule: (a) a reference to a clause or Appendix is to a clause of or Appendix to this Schedule; (b) “including” means including without limitation; (c) a percentage measured over a Service Month is calculated to two decimal places and rounded half-up; and (d) a figure that rounds to exactly the committed value is treated as meeting the commitment.

3. Protection Levels and Objectives

3.1 Level matrix

Each Dataset is assigned one Protection Level. Where a value in this table conflicts with a requirement arising from the Dataset's Data Category, clause 7.3 governs.

Attribute	Vital	Important	Routine
Recovery Point Objective (RPO)	1 hour	8 hours	24 hours
Recovery Time Objective (RTO)	4 hours	24 hours	5 business days
Backup Success Rate objective	99.5%	99.0%	97.0%
Copies maintained	3	3	2
Copies held offsite	2	1	1
Immutable copy (lock period)	35 days	14 days	Not provided
Integrity Check cadence	Monthly	Quarterly	Annually
Restore Test cadence	Quarterly	Semi-annual	Annual
Maximum Dataset size	200 TB	50 TB	10 TB
Catalogue indexing	Full-text and metadata	Metadata only	Metadata only
Service credit cap (per Service Month)	40%	30%	20%
Monthly Dataset Fee	£1,240	£520	£180

Table 3.1 — Protection Level matrix. Values are Level defaults and may be overridden by a Data Category requirement under clause 7.3 or by Amendment.

3.2 Level reassignment

The University may move a Dataset to a different Protection Level by written request. An upgrade takes effect on the first day of the Service Month following five Business Days' notice. A downgrade takes effect on the first day of the Service Month following thirty days' notice. Immutable copies already written under a higher Level remain locked for the remainder of their lock period.

4. Backup Execution

4.1 A Backup Job is successful only where it completes within its scheduled window and produces a Verified Recovery Point. A job that completes but fails checksum validation counts as failed.

4.2 Where a Backup Job fails, the Provider shall retry automatically at least twice before the next scheduled job. A job succeeding on retry within the scheduled window counts as successful.

4.3 The RPO is assessed continuously. Where the interval between the most recent Verified Recovery Point and the present moment exceeds the Dataset's RPO, an RPO breach is recorded. **No more than one RPO breach is recorded for a Dataset in any rolling 24-hour period**, however many jobs fail within it.

4.4 Backup Jobs excluded under Appendix B are removed from both the numerator and the denominator of the Backup Success Rate.

5. Integrity and Restore Testing

5.1 The Provider performs an Integrity Check at the cadence in Table 3.1. An Integrity Check validates checksums only and does not involve restoring data.

5.2 The Provider performs a Restore Test at the cadence in Table 3.1. A Restore Test is a full restore into an isolated environment and is successful only where the University confirms a functional check has passed.

5.3 Where an Integrity Check fails, the Provider shall identify an alternative valid Recovery Point and re-run the check within **48 hours**. A failure not resolved within that period attracts a credit under clause 9.5.

5.4 A failed Restore Test must be investigated and re-run within 30 days. Two consecutive failed Restore Tests for the same Dataset are treated as a Chronic Failure under clause 11.1.

6. Restores and Egress

6.1 A restore request is valid where it is submitted through the Catalogue by a member of the University's authorised requester list and identifies the Dataset and the Recovery Point sought.

6.2 The RTO runs from receipt of a valid restore request to the Dataset being restored and confirmed available. Time spent waiting for the University to confirm a destination or to provide capacity is excluded, provided the Provider records the request at the time it is made.

6.3 Where the requested Recovery Point is found to be corrupt, the Provider shall restore the most recent valid Recovery Point instead and shall notify the University within 2 hours of discovery. The RTO continues to run.

6.4 The University may restore up to **5 TB** per Service Month at no egress charge. Restores above that allowance are charged at the Provider's published rate.

7. Data Categories and Retention

7.1 Each Dataset is assigned a Data Category in Appendix A. The Category sets the minimum retention and immutability below.

Data Category	Description	Minimum retention	Immutable copy required
Restricted	Data held under a restricted-access agreement	15 years from end of project	Yes — 35 days
Funded	Data subject to a research funder mandate	10 years from first publication	Yes — 14 days
Teaching	Course material and teaching datasets	3 years from end of academic year	No
Transient	Working copies and compute scratch space	90 days	No

Table 7.1 — Data Category requirements.

7.2 Retention runs from the trigger stated in Table 7.1, not from the date of capture. The University is responsible for telling the Provider when a project ends or a dataset is first published.

7.3 **Category overrides.** Where the Protection Level value in Table 3.1 and the Data Category requirement in Table 7.1 differ for the same Dataset, the **stricter** requirement governs, being the longer retention period and the presence rather than the absence of an immutable copy. This applies even where the Protection Level provides no immutable copy at all.

7.4 On expiry of the applicable retention period the Provider shall delete the Dataset within 30 days and certify deletion on request. Data under a legal hold or a research misconduct investigation notified by the University is retained until the hold is released.

8. Catalogue Availability

8.1 The Provider commits to Catalogue availability of **99.5%** per Service Month. Availability is measured by an authenticated search request every 60 seconds from three locations; the Catalogue is unavailable in a minute where at least two of the three fail.

8.2 Unavailability of the Catalogue does not suspend the Provider's obligation to run scheduled Backup Jobs, and does not extend any RTO. Where the Catalogue is unavailable the Provider shall accept restore requests by email.

9. Service Credits

9.1 Where the Provider misses an objective for a Dataset in a Service Month, the University is entitled to a service credit expressed as a percentage of that Dataset's Monthly Dataset Fee.

9.2 **Backup Success Rate.** Where the rate is below the objective by **1** percentage point or less, a credit of **5%** applies. Where it is below by more than that, a credit of **10%** applies.

9.3 **RPO.** A credit of **6%** applies for each RPO breach recorded under clause 4.3, counting a maximum of **3** breaches in any Service Month.

9.4 **RTO.** A credit of **9%** applies for each valid restore request not completed within the RTO, counting a maximum of **2** in any Service Month.

9.5 **Integrity.** A credit of **4%** applies for each failed Integrity Check not resolved within 48 hours. This credit is not capped by number.

9.6 **Catalogue.** Where Catalogue availability is below 99.5%, a credit of **3%** applies where availability is at or above 98.0%, and **8%** where it is below 98.0%.

9.7 **Late report.** A credit of **2%** per Dataset applies for each monthly report delivered late, up to **3** late reports in any contract year.

9.8 Credits under clauses 9.2 to 9.7 are added together for the Dataset and the Service Month, and the total is limited to the cap for the Dataset's Protection Level in Table 3.1.

9.9 No credit is due where the failure falls within an exclusion in Appendix B.

9.10 The University must claim within **30 days** of the monthly report. The Provider must accept or reject within **10 Business Days**, giving reasons for any rejection. Credits are applied to the next invoice.

10. Reporting, Maintenance and Governance

10.1 The Provider delivers a monthly report within **10 Business Days** of the end of each Service Month, showing per Dataset: Backup Success Rate, RPO breaches, restore requests and RTO performance, Integrity Check and Restore Test results, Catalogue availability and credits due.

10.2 Planned maintenance is carried out only in the window **Wednesdays 22:00 to 02:00**, must not exceed **6 hours** in any Service Month, and requires at least **10 Business Days'** notice. Maintenance overrunning its window by more than 30 minutes is not excluded.

10.3 The University may audit the Provider's compliance **once** in any contract year on **30 days'** notice.

10.4 The Provider shall notify the University's Information Security Manager of any security incident affecting a Dataset within **24 hours** of becoming aware of it.

11. Chronic Failure and Exit

11.1 A **Chronic Failure** occurs for a Dataset where its Backup Success Rate is below objective in at least **3** of any **6** consecutive Service Months, or where two consecutive Restore Tests fail under clause 5.4.

11.2 On a Chronic Failure the Provider must deliver a remediation plan within **10 Business Days**. Where the Chronic Failure recurs for the same Dataset within 6 months of the plan being implemented, the University may terminate in respect of that Dataset on **60 days'** notice without charge.

11.3 On termination the Provider shall provide exit assistance for up to **90 days**, including export of all Recovery Points in an open format and transfer of the Catalogue index at no charge.

12. Change Control

12.1 Changes to this Schedule require a written variation signed by both parties. Adding or removing a Dataset, or changing its Protection Level or Data Category, is effected by an Appendix A entry confirmed by email and does not require a variation.

12.2 The University shall give at least 10 Business Days' notice of a change to a Dataset that could affect the Provider's ability to meet these objectives, including a material increase in volume or a change of storage platform.

Appendix A — Dataset Inventory

Dataset ID	Description	Protection Level	Data Category	Monthly Dataset Fee
ARD-GEN-0101	Genomics sequencing archive	Vital	Restricted	£1,240
ARD-CLI-0102	Clinical trials data repository	Vital	Restricted	£1,240
ARD-PHY-0103	Particle physics simulation outputs	Vital	Funded	£1,240
ARD-ENV-0201	Environmental sensor network archive	Important	Funded	£520
ARD-SOC-0202	Longitudinal social survey data	Important	Restricted	£520
ARD-ENG-0203	Engineering test rig datasets	Important	Funded	£520
ARD-LIB-0204	Digitised special collections	Important	Funded	£520
ARD-VLE-0301	Virtual learning environment content	Routine	Teaching	£180
ARD-LAB-0302	Teaching laboratory datasets	Routine	Teaching	£180
ARD-HPC-0303	High-performance computing scratch	Routine	Transient	£180

Table A.1 — Dataset inventory.

Datasets by Protection Level: Vital 3, Important 4, Routine 3. Total of Monthly Dataset Fees across all 10 Datasets: **£6,340** per Service Month, being **£76,080** per contract year.

> Note A.1: ARD-SOC-0202 carries Restricted data at the Important Level. Clause 7.3 governs any conflict between the Protection Level and the Data Category.

Appendix B — Exclusions

Ref	Event	Treatment
B.1	Failure of the University's source storage, compute or identity systems.	No credit. Affected Backup Jobs excluded from the Backup Success Rate.
B.2	A Dataset exceeding the maximum size in Table 3.1 without prior notice.	No credit until the Dataset is re-sized or re-levelled.
B.3	A restore request that is incomplete or made by a person not on the authorised requester list.	The RTO clock does not start until a valid request is received.
B.4	Data corrupt at source before capture.	No credit. The Provider must still supply the most recent uncorrupted Verified Recovery Point.
B.5	Planned maintenance under clause 10.2, within its notified window.	Minutes excluded from Catalogue availability.
B.6	Maintenance overrunning its window by more than 30 minutes.	Not excluded. Counts as unavailability from the end of the notified window.
B.7	Force majeure, including flood, fire and national emergency.	No credit.
B.8	A Dataset designated by the University in writing as unmanaged.	Out of scope under clause 1.2.

Table B.1 — Exclusions referred to in clause 9.9.

Appendix C — Worked Service Credit Examples

C.1 — ARD-GEN-0101, Genomics sequencing archive (Vital Level, Restricted Category, Monthly Dataset Fee £1,240), September 2026.

Backup Success Rate 98.9% against 99.5%, a shortfall of 0.60 points, so clause 9.2 gives **5%**; 2 RPO breach(es), counting a maximum of 3: 2 × 6% = **12%**; 1 restore(s) outside the RTO, counting a maximum of 2: 1 × 9% = **9%**; 1 unresolved Integrity Check failure(s), uncapped: 1 × 4% = **4%**; Catalogue availability 99.6% against 99.5%: **0%**. Sum **30%**; cap for Vital is **40%**; the sum is within the cap, so the credit is **30% of £1,240 = £372.00**.

C.2 — ARD-ENV-0201, Environmental sensor network archive (Important Level, Funded Category, Monthly Dataset Fee £520), October 2026.

Backup Success Rate 99.2% meets the objective: **0%**; Catalogue availability 98.4% against 99.5%: **3%**; monthly report late: **2%**. Sum **5%**; cap for Important is **30%**; the sum is within the cap, so the credit is **5% of £520 = £26.00**.

C.3 — ARD-VLE-0301, Virtual learning environment content (Routine Level, Teaching Category, Monthly Dataset Fee £180), November 2026.

Backup Success Rate 94.0% against 97.0%, a shortfall of 3.00 points, so clause 9.2 gives **10%**; 5 RPO breach(es), counting a maximum of 3: 3 × 6% = **18%**; 3 restore(s) outside the RTO, counting a maximum of 2: 2 × 9% = **18%**; 2 unresolved Integrity Check failure(s), uncapped: 2 × 4% = **8%**; Catalogue availability 97.1% against 99.5%: **8%**; monthly report late: **2%**. Sum **64%**; cap for Routine is **20%**; the sum exceeds the cap, so the credit is **20% of £180 = £36.00**.

Amendment No. 1

Agreed on **18 September 2026** between Ardwick University and Nimbus Archive Ltd. Unless stated otherwise it takes effect on **1 November 2026** and has no effect before that date.

A1.1 In Table 3.1 the Integrity Check cadence for the **Vital** Level is changed to **Fortnightly**.

A1.2 In Table 3.1 the Recovery Time Objective for the **Important** Level is reduced to **18 hours**.

A1.3 In clause 9.10 the claim period is extended to **45 days**.

A1.4 With effect from **1 June 2027**, and not before, an immutable copy with a lock period of **7 days** is introduced for the **Routine** Level.

A1.5 All other terms of this Schedule remain unchanged.

Signed for Ardwick University	Signed for Nimbus Archive Ltd
Name: Director of Research Computing	Name: Managing Director
Date:	Date: